

5. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

*HEARING ON MINOR'S COMPROMISE RE: J. FIGURES

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

6. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

*HEARING ON MINOR'S COMPROMISE RE: JAM. HALL FIGURES

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

7. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

*HEARING ON MINOR'S COMPROMISE RE: J. JACKSON BUDD

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

8. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

*HEARING ON MOTION IN RE: STAY DISCOVERY PENDING RULING ON MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

FILED BY: AIRBNB, INC.

TENTATIVE RULING:

Off calendar, at the request of the parties.

9. 9:00 AM CASE NUMBER: C25-01590

CASE NAME: SOFIA LOPEZ VS. SALLY WALLY

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WALLY, SALLY

TENTATIVE RULING:

Background

Plaintiff Sofia Lopez sues defendants Richmond Chamber of Commerce, Sally Wally and Rich Doellstedt, asserting 14 different causes of action: (1) harassment in violation of FEHA; (2) Retaliation in violation of FEHA; (3) Failure to prevent workplace harassment; (4) failure to pay wages in violation of the FLSA; (6) defamation; (7) intentional infliction of emotional distress; (8) breach of implied covenant of good faith and fair dealing; (9) negligent hiring, supervision and retention; (10) constructive termination in violation of public policy; and (11) violation of California Labor Code §1102.5 (whistleblower retaliation). The complaint also initially was brought by James Lee, who also alleged causes of action for: (10) constructive termination in violation of public policy; (5) wrongful termination; (12) failure to pay overtime wages; (13) failure to provide accurate wage statements; and (14) failure to pay wages upon termination. Mr. Lee has been dismissed from the action, thus those claims are no longer before the Court.

Causes of action 1 through 4, 7, and 10 are alleged against all defendants. Cause of action six is alleged against Wally only. Cause of action 11 does not identify who it is alleged against. Causes of action 8 and 9 are alleged against defendant RCOC only.

Defendant Sarah Wally demurs to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Tenth (moot by dismissal) and Eleventh causes of action of plaintiff's complaint, which are all of the causes of action alleged against her.

Counsel for Wally made a good faith effort to meet and confer about the demurrer, and while the parties communicated to some degree, plaintiff's counsel never substantively responded to the issues raised. Wally's counsel has complied with Code of Civil Procedure section 430.31 insofar as possible.

Discussion

First COA (harassment): As to Wally, the complaint alleges in general terms that Wally "routinely humiliated Ms. Lopez in the workplace verbally attacking her character, questioning her integrity, and disparaging her performance in front of colleagues." These allegations are not sufficiently specific to state a cause of action.

Second COA (retaliation): Wally contends that as a Board Member of RCOC, she was not the employer, and therefore could not be held liable for retaliation. The complaint alleges only that she was a member of the Executive Board of RCCC. This is insufficient, by itself, to state a cause of action against her for retaliation.

Third COA (failure to prevent harassment): Again, the simple allegation that Wally is a Board member, without more, is not sufficient.

Fourth COA (failure to pay wages): The simple allegation that Wally is an Executive Board member is not sufficient under Labor Code section 558.1.

Fifth COA (wrongful termination): The allegation that Wally is an Executive Board member is not sufficient.

Sixth COA (defamation): The allegation that Lally verbally attacked plaintiff's character, questioned her integrity, and disparaged her performance in front of colleagues is not sufficient to meet the requirements for pleading the five elements of defamation.

Seventh COA (Intentional Infliction of Emotional Distress): Plaintiff must allege "extreme and outrageous" conduct by Wally. The allegation that Lally "disparaged" and "humiliated" plaintiff is not sufficient.

Eleventh COA (whistleblower retaliation): Again, the simple allegation that Wally is a board member, without more, is not sufficient. (This cause of action did not even state who it is alleged against, so the Court infers that it is against all defendants.)

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

Lally's demurrer is sustained, with leave to amend.

**10. 9:00 AM CASE NUMBER: C25-01590
CASE NAME: SOFIA LOPEZ VS. SALLY WALLY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND CHAMBER OF COMMERCE, INCORPORATED
*TENTATIVE RULING:***

Background

Plaintiff Sofia Lopez sues defendants Richmond Chamber of Commerce, Inc. (RCOC), Sarah Wally and Rich Doellstedt, asserting 14 different causes of action: (1) harassment in violation of FEHA; (2) Retaliation in violation of FEHA; (3) Failure to prevent workplace harassment; (4) failure to page